ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws—

Title

1. These by-laws may be cited as the City of Masvingo (Food Hygiene) By-laws, 2025.

Application

2. These by-laws shall apply within the City of Masvingo area.

Interpretation

3. In these by-laws—

"aerated water" means every kind of non-alcoholic effervescent, clear, odourless, colourless liquid intended for human consumption;

"animal feed" means food including pet food which is intended for consumption by animals only;

"approved" means approved by the Environmental Health Officer or an officer assigned or appointed by council;

"bakery product" means bread, biscuits, rolls, tarts, cakes, pies and confectionery;

"container" includes any approved receptacle of any kind, whether open or closed;

"cordial" include every kind of non-alcoholic liquid whether frozen or not, which is—

(a) intended for human consumption; and

(b) ordinarily diluted before being consumed.

"council" means City of Masvingo;

"equipment" includes apparatus (mechanical or manual), furnishings, utensils and vehicles;

"risk of contamination" means as determined by the Environmental Health Officer or any officer assigned or appointed by council;

"food" and "article of food" means any substance in any form state or stage of preparation which is intended or is ordinarily used for human consumption including ice, but not drugs or water;

"food room" means any room or other place in which food is prepared or sold, manufactured, kept, stored, deposited, conveyed, handled or exposed for sale;

"meat" means the flesh (including the offals, bones, blood products and fat) of animals which is intended for human consumption;

"open food" means food other than that kept in a sealed container;

"premises" means a building or part of a building or any faculty, yard or place used in any connection with any buildings;

"sanitary convenience" means a water closet, urinal or similar device approved by the Environmental Health Officer or

any officer assigned or appointed by council and which is intended to be used for the disposal of human waste;

"soft drinks" includes every kind of non-alcoholic liquid, other than aerated water, whether frozen or not, which is—

(a) intended for human consumption; and

(b) diluted or not before being consumed.

Prohibition against the sale or storage of food in unsuitable premises

4. (1) No food shall be prepared, manufactured, stored, deposited, sold or exposed for sale in or on any premises if the condition, situation or construction of the premises is in such a way as to expose such food to the risk of contamination.

(2) The sale, preparation, manufacture, storage and exposure for sale of food shall be done from premises approved by Council.

Cleanliness of premises

5. (1) Every person who sells, prepares, manufactures, keeps, stores, deposits, conveys, handles or exposes for sale any food in or on any premises shall—

(a) cause the walls, floors, doors, windows, ceilings, woodwork and all other parts of every food room to be kept clean and in good order, repair and condition so as to—

(i) enable them to be effectively cleaned; and

(ii) prevent any risk of contamination by rats, mice, flies or insects (vermin) cockroaches and other humans;

(b) cause all containers, utensils or equipment with which food comes into contact, or liable to come into contact to be kept clean and in good repair and condition so as to—

(i) enable them to be thoroughly cleaned; and

(ii) to prevent any contamination of food;

(c) cause all working surfaces to be clean; and

(d) take all such steps as may be necessary to protect the food from risk of contamination, and in particular:—

(i) before offering any food for sale, ensure that any food which is unfit for human consumption is kept apart from any other food; and

(ii) not place any food lower than 500 millimetres from the ground on any pavement or in or about any forecourt or yard; and

(iii) ensure that open food, while displayed or exposed for sale, or during delivery, is kept covered or otherwise effectively screened so as to prevent any infection or contamination thereof; and

(iv) ensure that all food is stored in such a manner as to permit the thorough cleaning of the storage facilities and where appropriate to prevent spoilage by being stored at unapproved temperature;

(e) take all practical measures to maintain the premises free from flies, rodents, cockroaches and any other vermin;

(f) ensure that insecticides and pesticides are stored and used in such a manner so as to avoid any possible contamination of any food;

(g) cause every sanitary convenience in the premises—

(i) to be provided with adequate water and to be kept clean and in efficient and proper working order; and

(ii) to be so placed that no offensive odour from there can penetrate into any food- room; and

(h) cause every wash hand basin provided for the use of persons engaged in the handling of food in or about the premises to be—

(i) kept clean and in good working condition; and

(ii) provided with adequate supply of water and soap and or hot air hand-drying facilities; and

(iii) used for securing personal cleanliness, and not for any other purposes;

(i) cause every room containing a sanitary convenience to be—

(i) kept clean; and

(ii) provided with a legible notice requesting any person who uses such convenience to wash his hand after using the convenience; and

(iii) provided with sanitary bins;

(j) cause all refuse to be placed in approved impervious bins with lids and not to be deposited or allowed to accumulate in the food room.

(k) cause all persons engaged in the handling of food to be clean and dressed in clean light coloured over clothing, head gear and footwear while so employed;

(l) keep articles of wearing apparel only in such place as shall be approved for that purpose;

(m) provide a first-aid kit and adequate supply of suitable bandages, dressings (including waterproof dressings) and antiseptic for first aid treatment of persons engaged in the handling of food in or about those premises, and such first aid kit shall be kept in a place readily accessible to those persons;

(n) ensure that the food-room contains only such articles as are necessary for the proper conduct of the activity carried on, or intended to be carried on, in the food-room.

Storage

6. No person who sells, prepares, manufactures, keeps, deposits, conveys, handles or exposes for sale any food shall—

(a) use for wrapping or containing any open food any paper or other wrapping material which is not clean or which is liable to contaminate such food; or

(b) use any printed material, other than printed material designed exclusively for wrapping or containing food, to come into contact with any food, other than uncooked vegetables or unskinned rabbits or unplucked poultry; or

(c) use or cause or permit to be used, any crockery, utensils or vessel which is either cracked or chipped; or

(d) use any vehicle or receptacle for conveying or delivering food unless such vehicle or receptacle:—

(i) is constructed as to protect the food conveyed or delivered therein from contamination or any risk of contamination; and

(ii) is in a clean sanitary condition; and

(iii) bears the name and address of the owner legibly painted on it or affixed to it in a conspicuous position;

(e) permit any food to be carried in a vehicle or container with any live animal or live poultry;

(f) permit any food room to be used as a sleeping place or to communicate directly with a sleeping place;

(g) keep in any food-room any animal feed unless it is in a sealed container;

(h) permit any room which contains a sanitary convenience to be used as a food room or to communicate directly with a room used for the handling of food;

(i) permit any live animal or bird to enter or remain in a food-room unless the consent of the Council has been obtained;

(j) use any cracked, chipped or dirty milk bottle, cordial bottle or soft drink container;

(k) sell any food which, in the opinion of the Council or an Environmental Health officer, is unwholesome, adulterated or diseased.

Registration and Cleanliness of food handlers

7. Every person who is employed in the handling of open food shall be registered by the Council upon payment of a prescribed fee and while so engaged shall—

(a) need a valid medical certificate from a medical practitioner before taking up employment and every 12 (twelve) months thereafter or after having suffered enteric disorders; and

(b) keep clean all parts of his person which are liable to come into contact with the food; and

(c) keep clean all parts of his clothing or over clothing which are liable to come into contact with the food; and

(d) keep any open cut or abrasion on any exposed part of his person covered with a suitable waterproof dressing; and

(e) refrain from spitting on the premises; and

(f) refrain from smoking or using tobacco or snuff while on the premises; and

(g) use only an approved apparatus or instrument for handling cooked meats and confectionary; and

(h) wear clean and washable over clothing and if employed in carrying unwrapped meat which is liable to come into contact with the head or neck, wear an approved form of clean head- and-neck covering; and

(i) take all such steps as may be necessary to protect the food from the risk of contamination.

Notification of infectious disease in food handlers

8. (1) Immediately upon a person engaged in the handling of food becoming aware that he is suffering from or is a carrier of typhoid, paratyphoid, cholera, tuberculosis or any other salmonella infection, dysentery, infectious hepatitis or any staphylococcal infection likely to cause food poisoning, he or she shall notify his employer, who shall immediately notify the Environmental Health Officer or official assigned or appointed by Council:

Provided that where the person required to give such information is ether the employer or is self-employed, he or she shall give the information immediately to the Council.

(2) Upon receiving notification, Council shall immediately take the necessary measures to ensure that the disease is contained.

Powers of entry and inspection

9. (1) An authorised council official may, at all reasonable times, and at any time when business is in progress, enter and inspect any

premises and any equipment or any process being carried on therein to which these by-laws apply.

(2) No person shall hinder, obstruct or resist any such official in the exercise of his or her powers of entry and inspection.

Offences and penalties

10. Any person who contravenes any provision of these by-laws, shall liable to a fine specified in the Second Schedule.

FIRST SCHEDULE

FEES

Section	Description	Fee US$
7	Food handling registration	5,00

SECOND SCHEDULE

PENALTIES

Section	Description of Offence	Penalty (USD)
4	Prepare, manufacture, store, deposit, sell or expose for sale in or on any premises prone to contamination	50,00
	Sale, preparation, manufacture, storage and exposure for sale of food at unapproved premises	20,00
5	Failure to provide sanitary conveniences with adequate water and to keep them clean in an efficient and proper working order.	20,00
6	Prohibition against the sale of food items:	
	(a) which have passed the expiry date	50,00
	(b) that have been contaminated	50,00
	(c) that are unwholesome	50,00
8	Failure to notify Council of infectious disease	50,00
9	Hinder, obstruct or resist any such official in the exercise of his or her powers of entry and inspection.	100,00

The fines and penalties are payable in local currency at the prevailing interbank rate.